

Remuneration, Conditions of Service and Facilities of Secretary General of Federal Parliament, Secretary of House of Representatives and Secretary of National Assembly Act, 2018

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Act Relating to Remuneration, Conditions of Service and Facilities of the Secretary General of the Federal Parliament, Secretary of the House of Representatives and Secretary of the National Assembly, 2075

Certification Date

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Act Number 2 of the Year 2075

An Act Made to Make Provisions Relating to the Remuneration, Conditions of Service and Facilities of the Secretary General of the Federal Parliament, Secretary of the House of Representatives and Secretary of the National Assembly

Preamble: Whereas, it is desirable to make legal provisions relating to the remuneration, conditions of service and facilities of the Secretary General of the Federal Parliament, Secretary of the House of Representatives and Secretary of the National Assembly,

The Federal Parliament has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Act Relating to Remuneration, Conditions of Service and Facilities of the Secretary General of the Federal Parliament, Secretary of the House of Representatives and Secretary of the National Assembly, 2075."

(2) This Act shall come into force immediately. 2. Definition: Unless the subject or context otherwise requires, in this Act,-

(a) "Secretary General" means the Secretary General of the Federal Parliament.

(b) "Secretary" means the Secretary of the House of Representatives or the Secretary of the National Assembly appointed pursuant to the Constitution of Nepal. Chapter-2

Qualification, Term, Remuneration and Other Facilities

3. Qualification: A person must possess the following qualifications to become the Secretary General or Secretary:-

(a) Be a citizen of Nepal,

(b) Have obtained a master's degree in Law, Public Administration, Management, Political Science, Economics or Sociology from a university recognized by the Government of Nepal,

(c) Not be a member of any political party immediately prior to the appointment, and

(d) In the case of the Secretary General, have completed the age of forty-five years, and in the case of the Secretary, have completed the age of thirty-five years. 4. Persons Ineligible for Appointment to the Post of Secretary General or Secretary: The following person shall not be eligible for appointment to the post of Secretary General or Secretary:-

(a) One who has been punished by a court for an offence of corruption, rape, human trafficking and transportation, sale, distribution or transportation of narcotic drugs, money laundering, misuse of passport, kidnapping or other criminal offences involving moral turpitude,

(b) One who has become disqualified pursuant to Article 291 of the Constitution,

(c) One who is on the blacklist pursuant to the prevailing law,

(d) One who is an undischarged insolvent, or

(e) One who is of unsound mind. 5. Term: The term of office of the Secretary General and Secretary shall be five years, and they shall be eligible for reappointment.

Provided that if the Secretary General or Secretary attains the age of fifty-eight years before the completion of such term, they shall not continue to hold their office. 6. Circumstances of Vacancy in the Post of Secretary General or Secretary: The post of Secretary General or Secretary shall be deemed to have become vacant under the following circumstances:- (a) Upon submission of resignation to the President, (b) Upon the occurrence of disqualification as per Section 4, (c) Upon completion of the term of office as per Section 5 or if they do not hold the office, (d) Upon obtaining a permanent residence permit of a foreign country, (e) If the Secretary General or Secretary is removed from their office by the President upon the recommendation of the Speaker and the Chairperson in the case of the Secretary General, and upon the recommendation of the Speaker or the Chairperson of the respective House in the case of the Secretary, on the grounds of lack of work capacity, misbehaviour, or failure to honestly perform their official duties, or Provided that before removing the Secretary General or Secretary in this manner, a reasonable opportunity to present a defense shall be given. (f) Upon death. 7. Remuneration: (1) The Secretary General and Secretary shall receive remuneration equivalent to that received by the Chief Secretary and Secretary of the Government of Nepal, respectively. (2) Notwithstanding anything contained in Sub-section (1), if a person already receiving a pension from the government treasury is appointed to the post of Secretary General or Secretary, such person shall be entitled to receive either the pension or the remuneration under this Act. 8. Vehicle and Fuel Facility: The Secretary General and Secretary shall be provided with vehicle and fuel facilities equivalent to those provided to the Chief Secretary and Secretary by the Government of Nepal, respectively. 9. Festival Expense: The Secretary General and Secretary shall receive every year an amount equivalent to one month's remuneration drawn by them as festival expense. Chapter-3 Daily and Travel Allowance 10. Daily and Travel Allowance: While traveling within or outside Nepal in connection with the work of the Federal Parliament Secretariat, the Secretary General or Secretary shall be paid daily and travel allowance equivalent to that received by the special class level, according to the prevailing law relating to travel expenses. 11. Uniform Allowance: The Secretary General and Secretary shall be given an amount of ten thousand rupees as uniform allowance at the end of the month of Chaitra each year. Chapter-4 Leave 12.

Leave: (1) The Secretary General and Secretary may obtain the following types of leave with full remuneration:- (a) Festival leave and casual leave, (b) Home leave, (c) Sick leave, (d) Bereavement leave, (e) Maternity leave, and (f) Paternity leave. (2) The Secretary General and Secretary may take six days of casual leave and six days of festival leave each year. (3) The Secretary General and Secretary shall be

entitled to home leave at the rate of one day for every twelve days of the period worked. Home leave may be accumulated up to a maximum of one hundred eighty days. For the purpose of calculating the period worked for home leave, days on which casual leave and festival leave are taken, as well as public holidays, shall also be counted as days worked. (4) The Secretary General and Secretary shall be entitled to twelve days of sick leave each year. Such sick leave may be accumulated without limit. (5) If the Secretary General or Secretary has to perform bereavement rites themselves, they may take bereavement leave for a maximum of fifteen days depending on their religious tradition. (6) If the Secretary General or Secretary becomes pregnant, they shall be entitled to maternity leave for a total of ninety-eight days, before or after childbirth. (7) If the spouse of the Secretary General or Secretary is to give birth, the Secretary General or Secretary shall be entitled to paternity leave for fifteen days, before or after childbirth, a maximum of two times during the entire service period. (8) If the Secretary General or Secretary retires from the office, they shall be entitled to receive from the Federal Parliament Secretariat a lump sum amount calculated at the rate of the remuneration they were drawing for the leave accumulated pursuant to Sub-sections (3) and (4). (9) If the Secretary General or Secretary dies before receiving the amount payable pursuant to Sub-section (8), the person determined to receive family pension or gratuity pursuant to Section 16 shall be entitled to receive that amount. 13.

Authority to Grant Leave: (1) The Secretary General may take festival leave and casual leave on their own, and other leaves must be approved by the Speaker of the House of Representatives. (2) The Secretary of the House of Representatives must get festival leave and casual leave approved by the Secretary General, and other leaves approved by the Speaker of the House of Representatives. (3) The Secretary of the National Assembly must get festival leave and casual leave approved by the Secretary General, and other leaves approved by the Chairperson of the National Assembly. (4) The Federal Parliament Secretariat shall maintain the leave records of the Secretary General and Secretary. Chapter-5 Medical Expenses, Pension and Gratuity 14. Medical Expenses: (1) When the Secretary General or Secretary falls ill and undergoes treatment, they shall receive medical expenses as follows:- (a) Expenses according to the hospital bill incurred upon admission to and treatment at a government or community hospital, and expenses for medicines purchased as per the prescription of the hospital doctor. Provided that the diagnosis of the disease must be mentioned in the doctor's prescription. (b) Expenses according to the bill incurred for all types of surgical operations, excluding plastic surgery. (c) Expenses according to the bill incurred, within the amount specified by the Government of Nepal, for equipment such as spectacles, dental appliances, hearing aids, etc. (2) Notwithstanding anything contained in Sub-section (1), the total amount of medical expenses receivable by the Secretary General and Secretary during their entire term shall not exceed an amount equivalent to their twelve months' remuneration. (3) If a committee of doctors appointed by the Government of Nepal recommends that medical treatment is not possible within Nepal, additional financial assistance as deemed appropriate by the Government of Nepal may be provided to the Secretary General or Secretary wishing to go abroad for treatment, in addition to the medical expenses receivable under Sub-section (1). (4) Upon separation from service, the Secretary General and Secretary shall be entitled to receive, whether or not they have taken any part of the medical expenses receivable under Sub-section (2), a lump sum amount calculated as two-thirds of the balance of the medical expenses remaining.

15. Pension or Gratuity: (1) If a person has completed a service period of twenty years in the post of Secretary General or Secretary, or if a person who is or has been in government service is appointed to the post of Secretary General or Secretary and retires from service, and the total of the prior service period and the service period worked in the post of Secretary General or Secretary amounts to twenty years or more, such person shall receive a monthly pension calculated as follows:-

Explanation: For the purpose of this Sub-section, "period worked in government service" means the period worked upon appointment to any pensionable post under the Government of Nepal.

(2) If the service period of the Secretary General or Secretary is less than twenty years, the Secretary General or Secretary shall receive, upon separation from the post, a gratuity at the following rates:-

(a) If service is between five years and ten years, half a month's salary of the final salary for each year worked,

(b) If service is more than ten years up to fifteen years, one month's salary of the final salary for each year worked,

(c) If service is more than fifteen years but less than twenty years, one and a half months' salary of the final salary for each year worked.

(3) If a person who has already received a gratuity for service rendered to the Government of Nepal is appointed to the post of Secretary General or Secretary, the prior service period shall be counted for the purpose of pension only if such person refunds the full amount of the gratuity previously received within one year of such appointment.

(4) When the remuneration of the Secretary General or Secretary increases, two-thirds of the amount of increase in the drawn remuneration shall also be added to the pension amount of the Secretary General and Secretary who are receiving pension.

(5) If a person receiving a pension for service rendered to the Government of Nepal is appointed to the post of Secretary General or Secretary and is also eligible to receive a pension under this Act, such person shall be given the option to choose either the pension previously received or the pension receivable under this Act.

(6) Notwithstanding anything contained elsewhere in this Section, the Secretary General or Secretary removed from office on the grounds mentioned in Clauses (d) and (e) of Section 6 of this Act shall not be entitled to the facility of pension or gratuity under this Act. 16.

Family Pension or Gratuity: (1) If the Secretary General or Secretary has willed any member of their family, such person shall be granted the pension pursuant to Section 15, and if the willed person also dies, or if no one has been willed, the closest relative among the family members shall be granted it, based on the following:- (a) If the Secretary General or Secretary dies while holding office, for a period of seven years from the date of death, (b) If death occurs before completing seven years of receiving pension under Section 15, for the remaining period until the completion of those seven years. (2) If the Secretary General or Secretary dies while holding office and is not entitled to a pension under Section 15 but only to a gratuity, the person entitled to receive family pension pursuant to Sub-section (1) among the family members shall receive that gratuity amount. (3) After the period for receiving family pension pursuant to Sub-section (1) expires, the surviving widow or widower of the deceased Secretary General or Secretary shall be entitled to receive half of such pension for life. Provided that if such person is already receiving a pension for their own government service, they shall not receive the pension under this Sub-section. (4) When the remuneration of a serving Secretary General or Secretary increases, two-thirds of the amount of increase in the drawn remuneration shall also be added to the family pension being drawn by the person receiving family pension pursuant to Sub-sections (1) and (3). Chapter-6 Miscellaneous 17. Provident Fund: The Government of Nepal shall

deduct ten percent from the monthly remuneration of the Secretary General and Secretary as a provident fund contribution, add an equal amount (one hundred percent) to such deducted amount, and deposit the total into the provident fund. 18. Oath of Office: (1) Before assuming the duties of the office, the Secretary General must take an oath of office and secrecy in the format as per the Schedule, administered by the Speaker of the House of Representatives. (2) Before assuming the duties of the office, the Secretary must take an oath of office and secrecy in the format as per the Schedule, administered by the Speaker or Chairperson of the respective House. 19. Saving: Notwithstanding anything contained elsewhere in this Act, the remuneration, conditions of service and facilities of the Secretary General or Secretary appointed under the Act Relating to Remuneration, Conditions of Service and Facilities of the Secretary General and Secretary of the Legislature-Parliament, 2055 shall continue to be governed by that Act. 20.

Effect of Repeal of the Ordinance Relating to Remuneration, Conditions of Service and Facilities of the Secretary General of the Federal Parliament, Secretary of the House of Representatives and Secretary of the National Assembly, 2075: Upon the repeal of the Ordinance Relating to Remuneration, Conditions of Service and Facilities of the Secretary General of the Federal Parliament, Secretary of the House of Representatives and Secretary of the National Assembly, 2075, unless a contrary intention appears, such repeal shall not,- (a) Revive anything not in force or not existing at the time the said Ordinance was repealed, (b) Affect the things already done under the said Ordinance, or anything done or suffered by following due procedure under it, (c) Affect any right, privilege, obligation or liability acquired, accrued or incurred under the said Ordinance, (d) Affect any penalty, forfeiture or punishment incurred under the said Ordinance, (e) Affect any investigation, legal proceeding or remedy in respect of any such right, privilege, obligation, liability, penalty, forfeiture or punishment; and any such legal proceeding or remedy may be instituted, continued or enforced as if the said Ordinance had not been repealed. Schedule (Relating to Section 18) Oath I, , do solemnly pledge/swear in the name of God that, remaining fully faithful to the country and the people, and remaining completely loyal to the Constitution of Nepal, wherein the state authority and sovereignty of Nepal are vested in the Nepali people, I will perform the duties of the office of honestly, in accordance with the prevailing law, with the sole welfare of the country and the people in mind, without fear of anyone, without favoritism, without prejudice or ill will; and that I will not, in any manner, disclose or divulge any matter coming to my knowledge in the course of discharging my duties, whether while holding office or afterwards, except as required by law. Date: Signature